

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

-----X

CHERYL GRAVESANDE,

SUMMONS

Plaintiff,

Plaintiffs designate KINGS
County as the place of trial.

against

The basis of venue is:
Plaintiff's Residence

CITY OF NEW YORK, JESSE HARD aka JESSE HART
and B. Doyle aka B. Doyle,

Plaintiffs reside at:
Kings County

Defendants,

-----X

County of Kings

To the above named Defendant:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: August 3, 2022
White Plains, NY

RAWLINS LAW, PLLC

/s/

Gary N. Rawlins, Esq.

Attorney for Plaintiff

CHERYL GRAVESANDE

777 Westchester Avenue, Suite #101

White Plains, NY 10604

Tel : (212) 926-0050

Fax (347) 332-1592

TO:

City of New York
Corporation Counsel
New York City Law Department
100 Church Street
New York, New York 10007

JESSE HARD aka JESSE HART Tax Reg. # 942457
B. Doyle aka B. Doyh

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Docket No.:
Date Purchased:

-----X
CHERYL GRAVESANDE,

COMPLAINT

Plaintiff,

against

CITY OF NEW YORK, JESSE HARD aka JESSE HART,
and B. Doyl aka B. Doyh,

Defendants.

-----X

Plaintiff, by his attorney, **GARY N. RAWLINS**, as and for his Verified Complaint, respectfully alleges, upon information and belief:

1. This is a civil litigation action seeking damages against defendants for committing acts under color of law, and depriving plaintiff of rights secured by the Constitution and laws of the United States. Defendants, while acting in their capacities as police of the City of New York, State of New York, deprived Plaintiff of her liberty without due process of law, thereby depriving Plaintiff of her rights, privileges and immunities as guaranteed by the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States. The Court has jurisdiction of this action under 42 U.S.C. § 1983, 28 U.S.C. § 1343, and 28 U.S.C. § 1331.

2. The Plaintiff, **CHERYL GRAVESANDE**, at all times herein mentioned was and still is a resident of the County of KINGS and the State of New York.

3. At all times mentioned herein, Defendant **JESSE HARD aka JESSE HART Tax Reg. # 942457**, at all times herein mentioned was and still is a resident of the County of Kings, State of New York.

4. At all times herein mentioned, Defendant **CITY OF NEW YORK** (“NYC”), was and still is a municipal corporation, created, organized and existing under and by virtue of the laws of the State of New York.

5. At all times herein mentioned, Defendants **NYC** and Defendants **JESSE HARD aka JESSE HART and JESSICA THOMAS** stood in such a relationship with each other in providing law enforcement services as to make each liable for the acts and omissions of the others.

6. Defendants **NYC** are vicariously liable for the acts of Defendant **JESSE HARD aka JESSE HART and B. Doyl aka B. Doyh**.

7. At all times herein mentioned, Defendant **JESSE HARD aka JESSE HART Tax Reg. # 942457** was and still is a police officer employed by the New York City Police Department.

AS AND FOR A FIRST 1983 CAUSE OF ACTION FOR NEGLIGENCE AND FALSE ARREST AS AGAINST ALL DEFENDANTS IN VIOLATION OF PLAINTIFF’S UNITED STATES CONSTITUTIONAL RIGHTS

8. Plaintiff **CHERYL GRAVESANDE** repeats and re-alleges each and every allegation contained in the above paragraphs with full force and effect as if each were more fully set forth herein.

9. Plaintiff **CHERYL GRAVESANDE** sues all Defendants in their capacities.

10. On or about August 4, 2019, at approximately, Plaintiff **CHERYL GRAVESANDE** was at or about 7304 East 53rd Street, Brooklyn, NY 11202 in her backyard. Plaintiff **CHERYL GRAVESANDE** was accused of selling alcohol from her backyard. **JESSE HARD aka JESSE HART** falsely arrested her and accused her of selling liquor in her backyard.

11. Defendant **JESSE HARD aka JESSE HART** negligently pursued the prosecution of Ms. Gravesande without properly investigating what occurred. Specifically, the defendants negligently failed to investigate other information that would have demonstrated Ms. Gravesande's innocence. Defendants were negligent in performing proper police investigation procedures at the time of the arrest and in failing to do so throughout the prosecution of Ms. Gravesande.

12. **JESSE HARD aka JESSE HART** arrested Plaintiff and brought her to the 67th Precinct.

AS AND FOR A SECOND CAUSE OF ACTION FOR MALICIOUS PROSECUTION

13. Plaintiff was maliciously prosecuted. All charges were dismissed on August 4, 2019.

14. At all relevant times, Defendant **JESSE HARD aka JESSE HART** and **P.O. THOMAS** acted forcibly in apprehending, arresting and imprisoning Plaintiff **CHERYL GRAVESANDE**. **JESSE HARD aka JESSE HART** instituted a criminal action against Cheryl Gravesande. The prosecution ended in Ms. Gravesande's favor as all charges were dismissed on August 4, 2019. There was no probable cause to initiate the criminal proceeding as Ms. Gravesande was not selling liquor from her backyard.

AS AND FOR A THIRD CAUSE OF ACTION FOR A MONELL CLAIM AGAINST NYC

15. Prior to August 4, 2019, the City of New York, the New York Police Department developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of citizens, which caused the violation of Ms. Gravesande's rights. It was the

policy and/or custom of the City of New York to inadequately and improperly investigate citizens' complaints of police misconduct and actual acts of misconduct; and acts of misconduct were instead tolerated by the City of New York. It was the policy and/or custom of the City or New York to inadequately supervise and train its police officers, managers and employees including the respondent officers and thereby failing to adequately discourage further constitutional violations on the part of their agents. Specifically, officers were encouraged to withhold information to force plea deals. The respondents agencies did not require appropriate in-service training or re-training of officers and employees who were known to have engaged in misconduct or who had shown a propensity to encourage rule violations for their own convenience at the expense of others.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR FAILURE
TO INTERVENE TO PREVENT THE VIOLATION OF PLAINTIFF'S CIVIL
RIGHTS AS AGAINST ALL DEFENDANTS**

16. Plaintiff **CHERYL GRAVESANDE** repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

17. As a result of the above actions, Defendants **NYC**, individually, and/or vicariously, by and through its agents, servants and /or employees, and defendant **OFFICERS** , failed to intervene to prevent or end the unlawful conduct inflicted upon Plaintiff **CHERYL GRAVESANDE** by defendant **OFFICERS**.

18. As a result of the foregoing, Defendants **NYC** individually and and/or vicariously by

and through their agents servants, and/or employees, and **OFFICERS**, displayed a deliberate indifference to Plaintiff **CHERYL GRAVESANDE** rights to be free from unreasonable searches and seizures.

19. As a result of the foregoing, Defendants **NYC** individually and/or vicariously by and through its agents servants, and/or employees, including acted intentionally, willfully, maliciously, with reckless disregard for and deliberate indifference to Plaintiff's rights and physical well being.

20. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, Plaintiff demands judgment against the Defendants in each separate cause of action in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter; together with the costs and disbursements of this action.

Dated: August 3, 2022
White Plains, NY

RAWLINS LAW, PLLC
/s/ Gary N. Rawlins
Gary N. Rawlins, Esq.
Attorney for Plaintiff
CHERYL GRAVESANDE
777 Westchester Avenue, Suite #101
White Plains, NY 10604
Tel :(212) 926-0050
Fax (347) 332-1592

TO:

Corporation Counsel
New York City Law Department
100 Church Street
New York, New York 10007

JESSE HARD aka JESSE HART
Badge 23523
B. Doyle aka B. Doyh
43rd Precinct
900 Fteley Ave,
Bronx, NY 10473

ATTORNEY'S VERIFICATION

Gary N. Rawlins, an attorney admitted to practice in the Courts of the State, and attorney for Plaintiff states:

That your affirmant has read the foregoing instrument and knows the contents thereof; that the same is true to your affirmant's own knowledge except as to the matters which are stated therein to be alleged on information and belief, and as to those matters your affirmant believes them to be true. The source of your affirmant's information and belief is an investigation made with respect to the facts in this action.

That this Verification is made by affirmant and not by the Plaintiff is because the Plaintiff does not reside within the county where I maintain my Office.

The undersigned affirms that the foregoing statement is true, under penalties of perjury.

Date: White Plains, NY
August 3, 2022

Respectfully Submitted,

_____/s/_____
Gary N. Rawlins